

Punitive Damages

There is evidence that the force used by Paez was unreasonable. There are triable issues as to whether the use of unreasonable deadly force is sufficiently despicable to constitute malice or oppression.

DENY Summary Adjudication of this issue.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502376	MERCER vs FCA US LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the motion. Plaintiff is awarded attorneys fees in the reduced reasonable amount of \$15,200 and costs of \$6,900.20 for a total award of \$22,100.20.

Plaintiff counsel's requested hourly rates are excessive for the Riverside geographic area. The court will reduce the hourly rates to \$400/hour for partners and senior counsel, \$300 for associates, and \$150/hour for law clerks/paralegals. Here, the assistant, EO, billed 2.6 hours, but the tasks she performed are administrative in nature. Her allowable hours are reduced to zero (0). Plaintiff counsel AJT's hours expended on the Initial Disclosure template pursuant to CCP § 871.26 (b), (c), and (g), are excessive. The court will strike 7 hours from the total requested hours. AJT's hours are further reduced .9 for excessive time billed on this attorney fee motion, .8 hours for routine administrative functions and clerical communications, and 3.7 hours for duplicative prelitigation work. HM's hours are reduced 4.5 hours for excessive time billed on this attorney fee motion. Total compensable hours after reduction are; 8.9 for HM@\$400/hr., 38.8 for AJT@\$300/hr. and 0 for EO, for a total of \$15,200. No multiplier is awarded as this is a simple, straightforward lemon law case. Costs of \$6,900.20 are also awarded to Plaintiff.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503497	ROGERS-HARLESS vs GILL	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

Continue the hearing on the demurrer to September 30, 2026, at 8:30am, D-4. Plaintiff's opposition is untimely. Defendant will be permitted to file a Reply to Plaintiff's untimely opposition by September 18, 2026.